

**IN THE COUNTY COURT, IN AND FOR MANATEE COUNTY, FLORIDA**  
**COLONIAL MANOR MHC HOLDINGS, LLC,**

**Plaintiff,**

**Case No:**  
**Civil Division**  
**Landlord/Tenant Action**

**v.**

**MARLIN J. YODER, AND**  
**IF DECEASED, ALL UNKNOWN PARTIES,**  
**BENEFICIARIES, HEIRS, SUCCESSORS**  
**AND ASSIGNS OF MARLIN J. YODER**  
**AND ALL PARTIES HAVING OR CLAIMING**  
**TO HAVE ANY RIGHT, TITLE, OR INTEREST**  
**IN THE PROPERTY HEREIN DESCRIBED;**  
**AND ALL UNKNOWN UNAUTHORIZED OCCUPANTS,**

**Defendants.**

---

**COMPLAINT FOR EVICTION**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC ("Owner"), sues Defendants, MARLIN J. YODER, AND IF DECEASED, ALL UNKNOWN PARTIES, BENEFICIARIES, HEIRS, SUCCESSORS AND ASSIGNS OF MARLIN J. YODER AND ALL PARTIES HAVING OR CLAIMING TO HAVE ANY RIGHT, TITLE, OR INTEREST IN THE PROPERTY HEREIN DESCRIBED; AND ALL UNKNOWN UNAUTHORIZED OCCUPANTS, residing in the mobile home located at 900 9th Avenue E., Lot 168, Palmetto, Manatee County, Florida 34221 (the "subject mobile home"), and states:

1. This is an action for eviction within the jurisdictional limits of this Court to evict a residential mobile home, mobile home tenants, and any other occupants from real property in Manatee County, Florida as authorized by Section 723.061, Florida Statutes.

2. Plaintiff owns and operates Colonial Manor MHC, a mobile home community located at 900 9th Avenue E., Palmetto, Manatee County, Florida 34221, the ("Community").

3. The residents of the Community own their mobile homes and lease their respective lots from Plaintiff. Accordingly, the landlord/tenant relationship existing between Plaintiff/Owner and its residents is governed by Chapter 723, Florida Statutes.

4. Defendant is the legal owner of a 1979 NOBI mobile home with VIN No. N21287A/B, located in the Community at 900 9th Avenue E., Lot 168, Palmetto, Manatee County, Florida 34221.

5. Pursuant to an oral lease agreement, Plaintiff, as landlord, leased to Defendants, as tenants, Lot 168, in the Community.

6. A written demand dated August 6 2021, for the monies then due and owing was given to the Defendants. See copy attached hereto as Exhibit "A".

7. The nonpayment default has continued for more than five days after delivery of said written demand to Defendants. Plaintiff is therefore entitled to a judgment of eviction pursuant to section 723.061(1)(a), Florida Statutes, which provides:

**723.061 Eviction; grounds, proceedings.**

(1) A mobile home park owner may evict a mobile home owner, a mobile home tenant, a mobile home occupant, or a mobile home only on one or more of the following grounds:

(1)(a) Nonpayment of lot rental amount. If a mobile home owner or tenant, whichever is responsible, fails to pay the lot rental amount when due and if the default continues for 5 days after delivery of a written demand by the mobile home park owner for payment of the lot rental amount, the park owner may terminate the tenancy. However, if the mobile home owner or tenant, whichever is responsible, pays the lot rental amount due, including any late charges, court costs, and attorney's fees, the court may, for good cause, deny the order of eviction

8. Defendants have failed to pay all lot rental amounts when due for the months of July and August 2021. The total lot rental amount due as of August 6 2021, was \$1,343.00, which is the past due lot rental amount to be deposited in the Court Registry.

9. The monthly accruing lot rental amount of \$626.50, is the ongoing rent to be deposited in the Court Registry each month this action is pending.

10. If the amount outlined in paragraph 9 above is not deposited in the Court Registry by the fifth day of each month, a late fee in the amount of \$45.00 per month will accrue.

11. All conditions precedent to Plaintiff bringing this action have occurred or been waived.

12. Plaintiff is entitled to summary procedure as set forth in Section 51.011, Florida Statutes.

13. Plaintiff has retained the law firm of Lutz, Bobo & Telfair, P.A. to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

14. Pursuant to Section 723.068, Florida Statutes, and the written lease agreement, the prevailing party in this action is entitled to attorney's fees.

WHEREFORE, Plaintiff requests judgment against Defendants allowing Plaintiff as Owner to take possession of said property; evicting Defendants and ordering the issuance of a writ of possession for the subject property, ordering the payment of all sums held in the registry of the court and/or the amounts due under the rental agreement prior to eviction

to Plaintiff; awarding prevailing party attorney's fees and costs to Plaintiff; and, granting other relief as the court deems just and proper.

Dated this 10<sup>th</sup> day of September 2021.

/s/ Charles Lovings

CAROL S. GRONDZIK

FL Bar No.: 0156833

csggrondzik@floridahousinglaw.com

CHARLES LOVINGS, III

FL Bar No.: 0122411

clovings@floridahousinglaw.com

rmsterling@floridahousinglaw.com

Lutz, Bobo & Telfair, P.A.

2155 Delta Blvd. Suite 210-B

Tallahassee, FL 32303

(850) 521-0890 telephone

(850) 521-0891 facsimile

Attorneys for Plaintiff